

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amgad Fawzy	Team: Team # 3	CCRB Case #: 201208445	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/30/2012 10:55 PM	Location of Incident: Bleeker Street and Mott Street	18 Mo. SOL 12/30/2013	Precinct: 09		
Date/Time CV Reported Mon, 07/02/2012 4:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/02/2012 4:28 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sergio Delamota	18344	943137	009 PCT
2. POM Daniel Silverio	12147	943816	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Sergio Delamota	Discourtesy: PO Sergio Delamota spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Daniel Silverio	Discourtesy: PO Daniel Silverio spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Sergio Delamota	Abuse: PO Sergio Delamota threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Silverio	Abuse: PO Daniel Silverio threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . POM Daniel Silverio	Abuse: PO Daniel Silverio searched § 87(2)(b)	E . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint by phone with the CCRB on July 2, 2012 (encl. 3a-3b).

On June 30, 2012, PO Sergio de la Mota and PO Daniel Silverio stopped § 87(2)(b)'s vehicle for a violation of the vehicle and traffic laws (VTL). The following allegations resulted:

- **Allegation A – Discourtesy: PO Sergio de la Mota spoke rudely to** § 87(2)(b)
- **Allegation B – Discourtesy: PO Daniel Silverio spoke rudely to** § 87(2)(b) § 87(2)(g)
§ 87(2)(b) it is recommended that **Allegations A and B** be **unsubstantiated**.
- **Allegation C – Abuse of Authority: PO Sergio de la Mota threatened to arrest** § 87(2)(b)
- **Allegation D – Abuse of Authority: PO Daniel Silverio threatened to arrest** § 87(2)(b) § 87(2)(g)
§ 87(2)(b) it is recommended that **Allegations C and D** be **unsubstantiated**.
- **Allegation E – Abuse of Authority: PO Daniel Silverio searched** § 87(2)(b) § 87(2)(g)
§ 87(2)(b) it is recommended that **Allegation E** be **unsubstantiated**.

Mediation was presented to § 87(2)(b) over the phone on July 10, 2012, but he chose to pursue the investigation option (encl. 4a). Mediation was again offered to § 87(2)(b) during his in-person sworn statement at the CCRB on July 16, 2012, but he declined.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) white male with black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on July 16, 2012 (encl. 4b-4d).

At approximately 10:55 p.m. on June 30, 2012, § 87(2)(b) the driver of a yellow taxi cab, was transporting an unidentified male white passenger down Bleecker Street in Manhattan. At the corner of Bleecker Street and Mott Street, an unmarked gray Ford parked in one of Bleecker Street's two one-way lanes was obstructing his path. Two uniformed officers – whom the investigation identified as PO Sergio de la Mota and PO Daniel Silverio, both of the 9th Precinct – were standing beside the vehicle with another individual whom § 87(2)(b) believed to be homeless.

PO de la Mota and PO Silverio then approached § 87(2)(b)'s vehicle on foot at a rapid pace from either direction. § 87(2)(b)'s hands remained on the steering wheel as PO de la Mota, who approached the driver's side, repeatedly banged on the inside of the driver's side door with an open palm. One of the officers then shouted, "Give me your ID! Give me your fucking ID!" § 87(2)(b) is uncertain which officer uttered this phrase, as both were shouting at him from opposite sides of the vehicle. When § 87(2)(b) asked what was going on, PO de la Mota replied, "Don't argue with me! Give me your fucking ID!" One of the officers then instructed the passenger to leave by stating, "Get out of the car," and did not give him a chance to pay his fare.

PO de la Mota then ordered § 87(2)(b) to pull over behind the unmarked vehicle. Upon doing so, § 87(2)(b) removed his wallet from a compartment on the door panel and handed PO de la Mota his license. PO de la Mota then stated, "I can arrest you now." PO Silverio then ordered § 87(2)(b) to turn off his vehicle's ignition and surrender the keys to him, and informed him that he was under arrest.

PO de la Mota and PO Silverio then walked to the trunk of the unmarked vehicle, where PO Silverio prepared a summons for § 87(2)(a) 160.50. The two officers never entered their vehicle during the

encounter. Approximately four or five minutes later, § 87(2)(b) used his phone to take a photograph of the vehicle's plate number. Noticing the flash from the phone's camera, PO Silverio approached the driver's side, reached his hand into § 87(2)(b)'s vehicle and snatched the phone from § 87(2)(b)'s outstretched hand. PO Silverio then asked, "Why did you take a photo of me? I can arrest you for that." § 87(2)(b) responded that he did not photograph PO Silverio, but the unmarked vehicle.

PO Silverio then visually inspected the screen of § 87(2)(b)'s phone, which at the moment displayed thumbnails of various photos, each of which can be enlarged when selected by the user. § 87(2)(b) objected, stating that there were photographs of his family on the phone, which are private. PO Silverio then handed § 87(2)(b) the phone and said, "Try to erase it right now. You have two seconds to erase it." § 87(2)(b) attempted to locate the photograph in question but was unable to do so. He explained to PO Silverio that he did not have time to save the photograph on his phone.

PO Silverio then asked § 87(2)(b) where he was from. When § 87(2)(b) replied that he was an American citizen, PO Silverio stated, "I know that. Where you from?" § 87(2)(b) replied that he was of § 87(2)(b) descent, to which PO Silverio inquired, "Is that what you do to police officers in § 87(2)(b)?" § 87(2)(b) replied, "The police officers shoot the citizens in § 87(2)(b). You wanna shoot me? Go ahead."

PO de la Mota then returned with § 87(2)(b)'s license folded into the summons PO Silverio had prepared. He stated, "You're a reckless driver," informed him that he needed to appear in criminal court, and threw the license and summons in his face, causing the license to strike his forehead. When § 87(2)(b) attempted to dispute the accusation of § 87(2)(b), PO de la Mota cut him off and shouted, "Don't try to argue with me!"

NYPD Statements:

Subject Officer: PO SERGIO DE LA MOTA

- PO de la Mota is a § 87(2)(b) Hispanic male with black hair and brown eyes.
- On June 30, 2012, PO de la Mota of the 9th Precinct worked from 8:00 p.m. to 4:35 a.m. on July 1, 2012. He was in plainclothes and assigned to Impact Post 4 in an unmarked vehicle. His partner was PO Daniel Silverio.

Summons # § 87(2)(b)

§ 87(2)(a) 160.50

Memo Book

At 11:05 p.m., PO de la Mota issued summons number § 87(2)(b) § 87(2)(a) 160.50 at the corner of Bleecker Street and Elizabeth Street. He noted the motorist's name as § 87(2)(b) and his date of birth as § 87(2)(b). He also noted the SPRINT number attached to this activity as § 87(2)(b) (encl. 5c-5e).

CCRB Testimony

PO Sergio de la Mota was interviewed at the CCRB on October 17, 2012 (encl. 5f-5g).

PO de la Mota had no recollection of this encounter, even after being presented with a photograph of § 87(2)(b) and a copy of summons number § 87(2)(b), § 87(2)(a) 160.50. He could not recall what, if anything, he observed § 87(2)(b)'s vehicle doing before he effected the stop.

PO de la Mota stated that he and PO Silverio made a number of vehicle stops in the vicinity of Bleecker Street and Elizabeth Street on June 30, 2012, as the two were assigned to address a robbery condition in the area by making vehicle stops, issuing summonses, conducting stop and frisk actions and making arrests. They had not been instructed to address any specific traffic violation conditions on that date.

PO de la Mota does not recall anything out of the ordinary transpiring during any of the vehicle stops he made in the area on the date of the incident. He believes he may have stopped a yellow taxi cab on that date, but is not certain whether he did, or whether he stopped a taxi with a passenger in the backseat. He does not recall ordering a passenger to exit a taxi cab.

Subject Officer: PO DANIEL SILVERIO

- PO Silverio is a § 87(2)(b) Hispanic male with black hair and brown eyes.
- On June 30, 2012, PO Silverio of the 9th Precinct worked between the hours of 8:00 p.m. and 12:35 a.m. on July 1, 2012. He was in plainclothes, assigned to the conditions unit in unmarked RMP number 311, and working with PO Sergio de la Mota.

Memo Book

At 11:05 p.m., PO Silverio noted a vehicle stopped for § 87(2)(a) 160.50 at Bleecker Street and Elizabeth Street. He also noted that the motorist was combative. He did not note any other interaction at Bleecker Street and Elizabeth Street aside from his encounter with § 87(2)(b). The next entry in PO Silverio's memo book relates to a stop at 75 East 2nd Street (encl. 6a-6c).

CCRB Testimony

PO Daniel Silverio was interviewed at the CCRB on January 16, 2013 (encl. 6d-6f).

At approximately 11:05 p.m. on June 30, 2012, PO Silverio was standing with PO de la Mota outside their unmarked RMP, parked by the curb, when PO Silverio observed a yellow taxi cab driving at a speed he deemed excessive for a residential area, weaving in and out of traffic, and changing lanes without using its turn signals. PO Silverio does not recall whether he and PO de la Mota were interacting with anyone else prior to making this observation. PO Silverio and PO de la Mota then activated the unmarked vehicle's turret lights and PO Silverio approached the driver's side of the yellow taxi cab. He does not recall whether PO de la Mota also approached the driver's side or whether he approached the passenger's side. He believes that the only thing PO de la Mota said to § 87(2)(b) was, "We're cops," and did not hear him request § 87(2)(b)'s driver's license.

Although PO Silverio's shield was displayed around his neck, § 87(2)(b) initially did not believe the two to be police officers. § 87(2)(b) was alone in his vehicle at the time, and no passenger was in the backseat. He immediately expressed his intention to record video footage of the interaction by stating, "I wanna tape because I wanna make sure that you guys aren't doing the wrong thing." Noticing that § 87(2)(b) was reaching into his jacket to retrieve his phone, PO Silverio stated, "You can do whatever you wanna do after you give me your driver's license." § 87(2)(b) never produced a smartphone or other recording device during the encounter. At no point did PO Silverio or PO de la Mota take possession of § 87(2)(b)'s phone, nor did either officer visually inspect what was displayed on the screen. PO Silverio denies having ever said, "Why did you take a picture of me? I can arrest you for that."

PO Silverio then instructed § 87(2)(b) to shut off his vehicle's ignition and place the keys on the roof, but did not instruct him to surrender the keys, nor did he take possession of them during the encounter. In response, § 87(2)(b) refused to present his driver's license and questioned whether PO Silverio was actually a police officer. Because § 87(2)(b) challenged him verbally in this manner, PO Silverio characterized his demeanor as combative. To convince § 87(2)(b) that he was in fact a police officer, PO Silverio lifted his shirt to reveal his ballistics vest and radio, and offered to call his supervisor to the scene. He does not recall where § 87(2)(b)'s hands were at the time.

Although he recalls saying something along the lines of, "Don't argue," PO Silverio denies having ever added the phrase "give me your fucking ID" to that statement. He did not hear PO de la Mota make this statement during the encounter. PO Silverio does not know whether he used profanity while

addressing § 87(2)(b) and denies ever discussing § 87(2)(b)'s national origin during the encounter.

At no point did PO Silverio inform § 87(2)(b) that he was under arrest, nor did he hear PO de la Mota do so. § 87(2)(b) eventually gave PO Silverio his driver's license after PO Silverio repeated his initial request approximately 5 or 6 times. PO Silverio then ran a warrant check on § 87(2)(b) using the computer in the unmarked RMP, after which he stood at the trunk of the RMP and prepared a summons for reckless driving. He then presented the summons to § 87(2)(b) folded over his driver's license. § 87(2)(b) snatched the summons and license from PO Silverio's hand. At no point did PO Silverio throw the summons or the license into § 87(2)(b)'s vehicle.

PO Silverio did not observe PO de la Mota bang on the inside of § 87(2)(b)'s driver's side door during the encounter, nor did he or PO de la Mota break the plane of the vehicle by placing any part of their bodies inside it through the open driver's side window.

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- As of January 23, 2013, nearly four months past the filing deadline, § 87(2)(b) has not filed a Notice of Claim with the City of New York in regards to this incident (encl. 10).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officers' CCRB History

- PO Sergio de la Mota has been a member of the service for 6 years and there are no substantiated CCRB allegations against him (encl. 1a).
- PO Daniel Silverio has been a member of the service for 6 years and there are no substantiated CCRB allegations against him (encl. 1b).

Conclusion

Identification of Subject Officers

- PO Sergio de la Mota issued § 87(2)(b) a summons at 11:05 p.m. on June 30, 2012, but did not recall interacting with him.
- PO Daniel Silverio acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Discourtesy: PO Sergio de la Mota spoke rudely to § 87(2)(b)

Allegation B – Discourtesy: PO Daniel Silverio spoke rudely to § 87(2)(b)

§ 87(2)(b) testified that upon stopping his vehicle, PO de la Mota banged on the inside of the driver's side door as either he or PO Silverio repeatedly shouted, "Give me your fucking ID!" He was unable to determine which officer shouted this phrase. § 87(2)(b) also stated that when he asked PO de la Mota what was going on, PO de la Mota shouted, "Don't try to argue with me. Give me your

fucking ID.” While PO de la Mota could not recall ever having interacted with § 87(2)(b) PO Silverio testified that he did not hear PO de la Mota utter this phrase in particular and denied doing so himself. However, PO Silverio could not recall whether he or PO de la Mota used any profanity during the encounter.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: PO Sergio de la Mota threatened to arrest § 87(2)(b)

Allegation D – Abuse of Authority: PO Daniel Silverio threatened to arrest § 87(2)(b)

According to § 87(2)(b) when he removed his wallet from a compartment on the driver’s side door with the intention of producing his driver’s license, PO de la Mota stated, “I can arrest you now.” § 87(2)(b) further testified that PO Silverio then ordered him to turn off his vehicle’s ignition and surrender the keys to him, and informed him that he was under arrest. Later, when § 87(2)(b) took a photo of the unmarked RMP’s license plate, PO Silverio allegedly stated, “Why did you take a picture of me? I can arrest you for that.”

PO Silverio testified that at no point during the encounter did he threaten to arrest § 87(2)(b) or inform him that he was under arrest. He denied hearing PO de la Mota express his intention to place § 87(2)(b) under arrest. Although he heard § 87(2)(b) verbally express his intention to record the encounter and saw him reach into his jacket, he denied ever telling § 87(2)(b) that he can arrest him for taking a photo of him.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

Allegation E – Abuse of Authority: PO Daniel Silverio searched § 87(2)(b)

§ 87(2)(b) testified that after he photographed the unmarked RMP’s license plate, PO Silverio snatched the phone out of his hand and looked at the screen with the intention of finding the photograph he had taken. At the time, the screen of § 87(2)(b)’s phone was displaying thumbnails of various photos that can be enlarged if selected by the user. § 87(2)(b) then expressed his disapproval of PO Silverio’s looking through his phone, and stated that it contained various private family photographs.

PO Silverio testified that although § 87(2)(b) verbally expressed his intention to record video footage of the encounter, he never produced a smartphone or other recording device at any time. He denied ever being in possession of § 87(2)(b)’s phone during the encounter. PO de la Mota was unable to recall this particular vehicle stop, nor could he recall any interaction with § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Investigator:	_____	<u>Amgad Fawzy</u>	<u>02/05/2013</u>
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date